

Multiple Choice

1. **Answer:** A

Options: A) The POP will choose wealth over a compassionate society.; B) The POP will choose equality over power.; C) The POP will be unselfish.; D) The POP will choose to protect the disabled.

Note: The correct answer reflects Rawls' principle that under the veil of ignorance, rational individuals would prioritize the maximization of social primary goods, such as wealth, to ensure their own advantage in an uncertain future, over the subjective goal of creating a compassionate society.

2. **Answer:** B

Options: A) quasi contract; B) void contract; C) voidable contract; D) secondary party beneficiary contract

Note: This is a void contract because it involves the sale of an illegal substance, which lacks legal enforceability and is therefore not recognized by law.

3. **Answer:** B

Options: A) Coercion plays no part in our decision to obey the law.; B) He provides no empirical evidence in support of his thesis.; C) His argument is itself metaphysical.; D) He neglects the relation between morality and legal duty.

Note: The correct answer highlights that Olivecrona's argument lacks empirical evidence, which is essential for substantiating psychological explanations in law and undermines the validity of his thesis.

4. **Answer:** D

Options: A) The letter is an offer to sell; B) A valid offer cannot be made by letter.; C) The letter contains a valid offer which will terminate within a reasonable time.; D) The letter lacks one of the essential elements of an offer.

Note: The letter lacks the essential element of definiteness in an offer because it does not specify the terms of the sale, such as price or quantity, thereby failing to create a binding agreement.

5. **Answer:** B

Options: A) The UDHR is a multilateral treaty; B) The UDHR is a UN General Assembly resolution; C) The UDHR is a UN Security Council resolution; D) The UDHR is a declaration adopted by several States at an international conference

Note: The Universal Declaration of Human Rights (UDHR) is considered a UN General Assembly resolution because it was adopted by the General Assembly in 1948, making it a significant expression of international human rights standards, though it is not legally binding.

True / False

6. **Answer:** False

Options: A) True; B) False

Note: The distinction between general and particular jurisprudence was first established by legal philosopher Hans Kelsen, not H.L.A. Hart.

7. **Answer:** False

Options: A) True; B) False

Note: Collective security is based on the principle that states agree to respond collectively to aggression, which typically requires authorization from international bodies like the UN to ensure legitimacy and adherence to international law.

8. **Answer:** False

Options: A) True; B) False

Note: The statement is false because Gemeinschaft refers to community-oriented societies characterized by close personal relationships and traditional values, while Gesellschaft describes more impersonal, urban societies that may or may not embrace democratic principles.

9. **Answer:** True

Options: A) True; B) False

Note: Recognition is true because it reflects the pre-existing status of a state within the international community, affirming its sovereignty and existence without influencing its foundational legitimacy or existence.

10. **Answer:** False

Options: A) True; B) False

Note: Dworkin argues that human rights are inherent and not solely defined by societal norms, emphasizing their moral foundations that transcend societal consensus.

Long Form Response

11. **Answer:** Individuals possess a limited form of international legal personality compared to States and international organizations, which hold full legal status and rights under international law. While individuals can invoke certain rights, such as those articulated in human rights treaties, their ability to act independently in international law is constrained. States and international organizations can enter treaties, establish diplomatic relations, and be held accountable in international courts, while individuals typically rely on the protection of their States for legal recourse. This distinction implies that while individuals are increasingly recognized as bearers of rights, their influence and agency in the international legal sphere remain significantly limited compared to that of States and international organizations.

Note: The answer correctly identifies that individuals have a limited international legal personality, primarily characterized by the ability to invoke certain rights, while States

and international organizations possess full legal status, enabling them to engage in treaty-making, diplomacy, and accountability under international law.

12. **Answer:** Natural Law jurisprudence is grounded in the belief that law is intrinsically linked to moral principles that are universal and immutable. This perspective asserts that laws must reflect moral correctness to be valid, suggesting that unjust laws lack true legal authority. Within the context of constitutional law, Natural Law emphasizes that constitutions should safeguard fundamental human rights and uphold justice, thereby serving as a moral compass for legal interpretation and enforcement. Consequently, judges and lawmakers are often guided by these moral standards when interpreting constitutional provisions, ensuring that legislation aligns with ethical principles. This framework not only shapes legal reasoning but also frames the ongoing dialogue about the relationship between law and morality in constitutional governance. *Note:* The answer correctly identifies that Natural Law jurisprudence posits a fundamental connection between law and universal moral principles, asserting that valid laws must align with moral correctness to uphold justice and protect human rights within constitutional law.